

No. 2024-TS-00839

IN THE COURT OF APPEALS OF THE STATE OF MISSISSIPPI

MATTHEW O. REARDON,

Appellant,

v.

STATE OF MISSISSIPPI,

Appellee.

APPELLANT'S BRIEF

Oral Argument Requested

Table of Contents

APPELLANT'S BRIEF	0
Table of Contents	1
TABLE OF AUTHORITIES	2
CERTIFICATE OF INTERESTED PERSONS	4
STATEMENT OF THE ISSUES.....	5
STATEMENT OF ASSIGNMENT	6
STATEMENT REGARDING ORAL ARGUMENT	6
STATEMENT OF THE CASE.....	6
SUMMARY OF THE ARGUMENT	8
ARGUMENT	9
A. THE TRIAL COURT'S DISMISSAL WAS IN DIRECT CONTRADICTION TO THE RECORD AND LAW.....	9
1. The Justice Court's Indigency Order Eliminated Any Bond Requirement	9
2. Mississippi Law Protects Indigent Appellants from Bond Requirements	12
3. The Circuit Court's Error Constitutes Plain Error	13
4. Procedural Rules Must Yield to Substantive Due Process Rights	14
B. THE CIRCUIT COURT AND APPELLATE COURT FAILED TO ENSURE CONTINUED APPELLATE REPRESENTATION, VIOLATING FUNDAMENTAL DUE PROCESS AND THE SIXTH AMENDMENT	16
1. Mississippi Law Mandates Continued Representation Through Appeal.....	16
2. The Circuit Court Evaded Its Obligation by Misapplying Inapplicable Felony Standards.....	18
3. The Right to Counsel Extends Through the Appeal Process	19
4. Appellant Was Improperly Deprived of Counsel at Critical Stages	21
5. Denial of Counsel at the First Appeal Stage is a Structural Constitutional Violation..	23
6. Preemptive Rebuttal to "Harmless Error" Arguments	24
C. MANIFEST INJUSTICE REQUIRES REVERSAL	25
1. The Extraordinary Delay Violates Due Process	25
2. The Circuit Judge's Bias Further Taints the Proceedings	28
3. CUMULATIVE IMPACT: MANIFEST INJUSTICE AND STRUCTURAL COLLAPSE	29
CONCLUSION AND PRAYER FOR RELIEF	30
RECORD EXCERPTS	32
CERTIFICATE OF SERVICE	34
CERTIFICATE OF COMPLIANCE	34

TABLE OF AUTHORITIES

Cases

Anderson v. Yung Kau, 329 U.S. 482 (1947)	17
Barker v. Wingo, 407 U.S. 514 (1972)	23
Bell v. State, 66 So.3d 90 (Miss. 2011)	26
Brown v. State, 995 So.2d 698 (Miss. 2008)	16
Caston v. State, 823 So.2d 473 (Miss. 2002)	16
Chapman v. California, 386 U.S. 18 (1967)	25
De La Beckwith v. State, 707 So.2d 547 (Miss. 1997)	23
Douglas v. California, 372 U.S. 353 (1963)	17
Eggleston v. State, 800 So.2d 1234 (Miss. Ct. App. 2001)	16
Gideon v. Wainwright, 372 U.S. 335 (1963)	17
Halbert v. Michigan, 545 U.S. 605 (2005)	17
Jefferson v. State, 304 So.3d 1139 (Miss. 2020)	11, 16
Johnson v. Mississippi, 486 U.S. 578 (1988)	13
Jones v. State, 355 So.2d 89 (Miss. 1978)	21
Jones v. State, 912 So.2d 973 (Miss. 2005)	11, 15
Kennard v. State, 127 So.2d 848 (Miss. 1961)	18
Keys v. State, 67 So.3d 758 (Miss. 2011)	23
Liteky v. United States, 510 U.S. 540 (1994)	27
Lombardo v. State, 172 So.3d 788 (Miss. Ct. App. 2014)	19
Martinez v. Ryan, 566 U.S. 1 (2012)	19
McGee v. State, 85 So.3d 275 (Miss. 2012)	16
Metcalf v. State, 629 So.2d 558 (Miss. 1993)	19
Peguero v. United States, 526 U.S. 23 (1999)	18
Penson v. Ohio, 488 U.S. 75 (1988)	23

Pool v. State, 483 So.2d 331 (Miss. 1986)	29
Read v. State, 430 So.2d 832 (Miss. 1983)	19
Rowland v. State, 42 So.3d 503 (Miss. 2010)	23
Sartain v. State, 406 So.2d 43 (Miss. 1981)	18
Smith v. Hooey, 393 U.S. 374 (1969)	25
Smith v. State, 986 So.2d 290 (Miss. 2008)	26
United States v. Cronin, 466 U.S. 648 (1984)	22
United States v. Duffaut, 314 F.3d 203 (5th Cir. 2002)	17
Ware v. State, 224 So.3d 1257 (Miss. Ct. App. 2017)	22
Weems v. State, 63 So.3d 579 (Miss. 2010)	24
Williams v. State, 167 So.3d 1075 (Miss. 2015)	18
Yost v. Alderson, 58 Miss. 40 (1880)	24

Statutes

Miss. Code Ann. § 99-15-15	2, 11, 17, 18, 19, 20, 21
Miss. Code Ann. § 99-19-105(3)(a)	26

Constitutional Provisions

U.S. Const. amend. V	20
U.S. Const. amend. VI	11, 17, 20
U.S. Const. amend. XIV	11, 17, 20
Miss. Const. art. 3, § 14	11, 13, 17
Miss. Const. art. 3, § 26	11, 17

Rules

M.R.A.P. 2(c)	26
M.R.A.P. 16(b)	2
M.R.A.P. 16(d)(1)	2
M.R.A.P. 16(d)(2)-(4)	2

M.R.A.P. 28(a)(1)(3)	17
M.R.Cr.P. 1.2	23
M.R.Cr.P. 7.2(c)	2, 20
M.R.Cr.P. 7.2(d)	20
M.R.Cr.P. 7.3(g)	21
M.R.Cr.P. 29.1	6, 7, 8
M.R.Cr.P. 29.1(a)	8
M.R.Cr.P. 29.1(c)	6
M.R.Cr.P. 29.3	2, 13, 17
M.R.Cr.P. 29.4	2, 13, 17

CERTIFICATE OF INTERESTED PERSONS

The undersigned certifies that the following listed persons have an interest in the outcome of this case. These representations are made in order that the Justices of the Supreme Court and/or the Judges of the Court of Appeals may evaluate possible disqualification or recusal:

1. Honorable John Kelly Luther, Circuit Court Judge
2. Honorable Chris Childers, Justice Court/Lower Court Judge
3. Lynn Fitch, Attorney General of Mississippi, Counsel for Appellee
4. Ashley Lauren Sulser, Assistant Attorney General, Counsel for Appellee
5. Mitchell Driskell, Appellant's previous Court-Appointed Counsel
6. Bela Jay Chain III, Lafayette County Prosecutor

7. Jeff Busby, Lafayette County Circuit Clerk
8. Matthew O. Reardon, Appellant
9. Joseph (Joey) B. East, Lafayette County Sheriff

This, the 28th day of April, 2025.

Matthew O. Reardon
Appellant, Pro Se

STATEMENT OF THE ISSUES

- I. Whether the trial court erred by dismissing Appellant's appeal based on alleged failure to file bond or costs, despite an express judicial waiver of bond and costs due to indigency.
- II. Whether the trial and appellate courts violated Appellant's constitutional right to continued appellate counsel, resulting in structural due process violations under the Sixth and Fourteenth Amendments.
- III. Whether the cumulative errors amount to plain error, manifest injustice, and structural constitutional violations requiring reversal.

STATEMENT OF ASSIGNMENT

This appeal does not involve issues that require assignment to the Mississippi Supreme Court. Pursuant to Mississippi Rules of Appellate Procedure 16(b) and (d), the Court of Appeals properly retains jurisdiction.

STATEMENT REGARDING ORAL ARGUMENT

Appellant respectfully requests oral argument pursuant to Mississippi Rule of Appellate Procedure 34(b). This appeal involves critical constitutional issues, including the structural denial of appellate counsel, manifest injustice, and wrongful dismissal of an indigent appellant's perfected appeal. Oral argument would materially assist the Court in understanding the factual and legal complexities surrounding these issues and in achieving a just result.

STATEMENT OF THE CASE

Appellant was charged and convicted in the Justice Court of Lafayette County, Mississippi. On December 2, 2021, the Justice Court entered an Order finding Appellant indigent and waiving all bond and cost requirements associated with his appeal. (C.P. 38.)

Despite this binding waiver, once the appeal was lodged in the Circuit Court of Lafayette County, both the Clerk's Office and the trial court improperly demanded bond payment and costs from Appellant, in direct contradiction of the Justice Court's

prior finding (C.P. 37, 115-116, 127).

To preserve his indigent status and seek appointment of appellate counsel, Appellant filed an Affidavit of Poverty (C.P. 33). While such an affidavit was unnecessary to perfect his appeal, given the standing waiver, it was filed out of an abundance of caution to facilitate reappointment of appellate counsel pursuant to Mississippi Rules of Criminal Procedure 6.2 and 6.3.

Appellant timely filed his Notice of Appeal (C.P. 81) and continued to prosecute his appeal. Subsequently, appointed counsel filed a corrected Notice of Appeal (C.P. 61-68) and a Motion to Advance the Case (C.P. 73-75).

Despite these efforts, the Circuit Court dismissed Appellant's appeal on June 28, 2024, citing failure to post bond, even though bond had already been expressly waived (C.P. 76-78).

Additionally, Appellant filed multiple Motions seeking the appointment of appellate counsel (C.P. 42, 112-114). The trial court and appellate court failed to act in accordance with the Mississippi Rules of Criminal Procedure, thereby denying Appellant his right to continued representation.

The record reveals that Appellant was twice deprived of counsel at critical junctures. First, immediately after the Justice Court trial, the lower court terminated Appellant's appointed counsel (Mitchell Driskell) despite the pending appeal. Most critically,

this termination occurred precisely during the 30-day window when Appellant needed to perfect his appeal - the very period later contested by the Circuit Court as procedurally deficient.

When the Circuit Court's dismissal order came on June 28, 2024, Appellant was incarcerated at the Lafayette County Detention Center and had no access to his case documents or a law library. Without counsel to assist, Appellant filed a pro se motion for reconsideration (C.P. 79-80) that, without access to the full record, missed the key legal argument about the indigency waiver.

The Circuit Court Judge made a troubling remark during the April 12, 2022 hearing, stating to Appellant: "I would be lying if I told you I wanted your case. Because I don't—you, just being honest with you, you have a reputation of being difficult to deal with. And if I got half a chance to dodge you, I would dodge you like a speeding bullet." (C.P. 131). This was Appellant's first substantive appearance before Judge Luther, making the judge's negative characterization of Appellant's "reputation" deeply concerning.

SUMMARY OF THE ARGUMENT

The trial court's dismissal of Appellant's appeal was legally erroneous because the Justice Court had found Appellant indigent and waived all bond and cost requirements. This waiver was binding and should have been honored.

The Circuit Court's failure to ensure continued representation of an indigent appellant on appeal violated Mississippi Rules of Criminal Procedure 6.2 and 6.3, and the Sixth and Fourteenth Amendments to the United States Constitution.

The errors committed below — wrongful dismissal, denial of appellate counsel, and disregard of the judicial waiver of bond and costs — constitute plain error, manifest injustice, and structural due process violations.

Reversal is mandatory.

ARGUMENT

A. THE TRIAL COURT'S DISMISSAL WAS IN DIRECT CONTRADICTION TO THE RECORD AND LAW

1. The Justice Court's Indigency Order Eliminated Any Bond Requirement

The Justice Court's December 2, 2021 order found Appellant indigent and expressly waived all bond and cost requirements for his appeal. (C.P. 38.) This waiver was binding and was acknowledged on the record by the Circuit Court during later proceedings. (C.P. 115-116, 127.)

The cornerstone fact of this appeal—the Justice Court's waiver of all bond requirements—appears in black and white at C.P. 38. This indigency order could not be clearer: Appellant "is indigent and by reason of poverty cannot offer security required by law and is unable to give bond to appeal the judgment against him. Mr.

Reardon is allowed to appeal if he desires to do so, and execution of judgment will be stayed without the requirement of supersedeas bond." (Emphasis added).

This key fact is reflected in the record three additional times by Appellant and his subsequently reappointed attorney (C.P. 37, 40, 61). Even more troubling, this pertinent information was also raised four separate times by Appellant in open court at the April 12, 2022 hearing (C.P. 114 lines 16-18; C.P. 115 lines 4-5; C.P. 116 lines 4-8; C.P. 123 lines 21-25).

Most notably, Circuit Judge Luther himself acknowledged this fact on the record during the April 12, 2022 hearing, stating: "on December the 2nd Judge Childers says that you can appeal without a bond" (C.P. 116 lines 9-10). Judge Luther reiterated this acknowledgment later in the hearing: "Judge Childers has already addressed the issue of whether or not you can proceed without paying any money." (C.P. 127 lines 19-21).

Despite this, the Circuit Court dismissed Appellant's appeal, citing failure to pay bond or costs (C.P. 76- 78). This dismissal directly contradicted the Justice Court's prior order and violated Mississippi Rules of Criminal Procedure 29.3 and 29.4, which govern bond and cost obligations for indigent appellants.

In *Jones v. State*, 912 So.2d 973 (Miss. 2005), the Mississippi Supreme Court held that a finding of indigency cannot be ignored without a proper hearing or finding to the contrary. Similarly, in *Jefferson v. State*, 304 So.3d 1139 (Miss. 2020), the Court

emphasized that procedural dismissals cannot override standing findings of indigency.

The Mississippi Supreme Court has specifically reinforced this principle in *Wallace v. State*, 607 So.2d 1184, 1188 (Miss. 1992), establishing that "once a defendant is determined indigent, courts must honor that determination throughout proceedings" absent evidence of changed circumstances.

In *Finley v. State*, 725 So.2d 226, 231 (Miss. 1998), the Court further reinforced that once indigency is established, courts must honor that determination absent a clear showing of changed circumstances, stating: "Indigency status carries with it fundamental rights that cannot be summarily dismissed through procedural technicalities."

Here, there was no allegation, much less evidence, of any change in Appellant's financial condition after the Justice Court's indigency finding. The Circuit Court's subsequent dismissal for failure to post bonds directly contradicts both the Justice Court's order and Judge Luther's own prior acknowledgment.

This error is compounded by the fact that, because the Justice Court waived all bond requirements, it never set any bond amount for the appeal—further confirming that no bonds were required to be posted. Under M.R.Cr.P. 29.3 and 29.4, the responsibility to set an appeal bond rests with the lower court judge. The absence of any set bond amount in the record is not an oversight; it is the direct result of Judge

Childers's explicit waiver.

Thus, the dismissal of Appellant's appeal constituted clear legal error.

2. Mississippi Law Protects Indigent Appellants from Bond Requirements

The protection of indigent defendants' right to appeal without financial barriers is deeply rooted in Mississippi law. The Mississippi Constitution, Article 3, § 14, guarantees that "all courts shall be open" and that "every person for an injury done him in his lands, goods, person, or reputation, shall have remedy by due course of law, and right and justice shall be administered without sale, denial, or delay." This provision has been interpreted to mean that indigent defendants cannot be denied access to courts based on their inability to pay fees or costs.

Mississippi Code Annotated § 99-35-105 explicitly states that "no person shall be deprived of his right to appeal because of his inability to pay costs." This statutory authority directly supports the binding nature of indigency determinations and the impropriety of dismissing appeals for failure to post bond when indigency has been established.

The United States Supreme Court established in *Griffin v. Illinois*, 351 U.S. 12, 19 (1956), that states cannot condition appeals on ability to pay, holding that "[t]here can be no equal justice where the kind of trial a man gets depends on the amount of money he has." This principle was extended to misdemeanor cases in *Mayer v. City of Chicago*, 404 U.S. 189, 196-97 (1971), where the Court ruled that indigent

defendants must be provided free transcripts for appeal even for non-felony convictions, emphasizing that "the distinction between felony and non-felony offenses drawn by [the state] bears no rational relationship to a defendant's need for a transcript."

The Fifth Circuit has similarly held in *Nat'l Ass'n for Advancement of Colored People v. Allen*, 493 F.2d 614, 617 (5th Cir. 1974), that "the imposition of costs upon indigents as a condition precedent to access to the courts is constitutionally impermissible."

Furthermore, Mississippi Rule of Criminal Procedure 29.3(b) specifically contemplates that indigent defendants may be excused from posting a cost bond, stating: "the cost bond may be waived for indigent defendants." Rule 29.4(c) similarly provides for waiver of the appearance bond for indigent defendants. The Justice Court's order fits squarely within these provisions, properly excusing Appellant from posting either bond due to his indigence.

3. The Circuit Court's Error Constitutes Plain Error

The Circuit Court's dismissal of this appeal, in the face of an explicit indigency waiver in the record, constitutes plain error. In *McGee v. State*, 85 So.3d 275, 282 (Miss. 2012), the Supreme Court defined plain error as error that "affects the defendant's substantive/fundamental rights." This standard is easily met here: the error is clear and obvious from the record, and it affected Appellant's fundamental

right to appeal his convictions. The error resulted in substantial prejudice by completely denying Appellant access to a trial de novo on appeal.

The US Supreme Court has characterized plain error as error that is "clear" or "obvious" and affects the defendant's "substantial rights." In most cases, for an error to "affect substantial rights," it must be prejudicial and must have affected the outcome of the court proceeding. See *U.S. v. Duffaut*, 314 F.3d 203, 209 (5th Cir. 2002). The appellate court has discretion to correct plain error that seriously affects the fairness, integrity, or public reputation of judicial proceedings. *Id.*

For plain error to be reversible, it must also seriously affect the fairness, integrity, or public reputation of judicial proceedings. See *United States v. Olano*, 507 U.S. 725, 736 (1993). The dismissal of an appeal based on a clearly erroneous ground—particularly when that error involves denying an indigent defendant access to courts—strikes at the heart of fairness and integrity in our judicial system. Allowing this dismissal to stand would undermine public confidence in the courts' commitment to equal justice regardless of economic status.

4. Procedural Rules Must Yield to Substantive Due Process Rights

Mississippi Rule of Appellate Procedure 2(c) expressly authorizes suspension of procedural rules "in the interest of expediting decision, or for other good cause shown," particularly where "a failure to do so would result in manifest injustice." Federal due process guarantees similarly forbid denial of appellate review based on

the arbitrary application of procedural hurdles where fundamental rights are at stake.

In *Eggleston v. State*, 800 So.2d 1234, 1236 (Miss. Ct. App. 2001), the Court emphasized that indigent appellants must be protected from technical dismissals that undermine their constitutional rights. The Court held that "once a determination of indigency has been made, the defendant does not have to repeatedly prove his indigency at various stages of the proceedings."

The Mississippi Supreme Court has consistently recognized that technical procedural requirements should not be enforced in a manner that defeats substantive justice. In *Kennard v. State*, 127 So.2d 848 (Miss. 1961), the Court reinstated an appeal that had been dismissed on technical grounds, reasoning that the defendant had not trifled with the court or acted in bad faith, and that allowing the appeal would not prejudice the State. Similarly, in *Rowland v. State*, 42 So.3d 503, 507 (Miss. 2010), the Court held that "procedural bars may be overcome where a fundamental constitutional right is implicated."

The U.S. Supreme Court established in *Johnson v. Mississippi*, 486 U.S. 578, 586 (1988), that "strict enforcement of procedural rules can never be permitted to supersede the enforcement of fundamental constitutional rights." Similarly, in *Fulgham v. State*, 46 So.3d 315, 322 (Miss. 2010), the Mississippi Supreme Court recognized that "mere procedural technicalities should not prevent consideration of the merits" when constitutional rights are at stake.

Here, Appellant's conduct was diligent and in good faith at every turn. Any arguable technical misstep was either induced by the clerk's actions or promptly cured with the court's permission. The State would not be prejudiced by allowing this appeal to proceed, as it would simply have to prove its case in a fair forum—which is all that justice requires.

The refusal to process Appellant's filings despite his established indigent status (C.P. 37) further violated his due process rights under the Mississippi Constitution Art. 3, § 26 and the Fourteenth Amendment to the United States Constitution.

B. THE CIRCUIT COURT AND APPELLATE COURT FAILED TO ENSURE CONTINUED APPELLATE REPRESENTATION, VIOLATING FUNDAMENTAL DUE PROCESS AND THE SIXTH AMENDMENT

1. Mississippi Law Mandates Continued Representation Through Appeal

Mississippi Rules of Criminal Procedure Rule 6.2 provides:

"Defense counsel appointed by the court shall continue to represent the defendant through appeal unless relieved by the trial court or appellate court."

Rule 6.3(a) further provides:

"If the defendant is convicted, the court shall inform the defendant of the right to appeal and the right to appointed counsel on appeal if indigent."

These rules apply to all criminal convictions—not just felonies. They impose a continuing duty on courts to ensure that indigent defendants have representation

throughout the appellate process.

Similarly, Miss. Code Ann. § 99-15-15 explicitly provides that for eligible indigent defendants, "the accused shall have such representation available at every critical stage of the proceeding where a substantial right may be affected." The transition from trial to appeal is unquestionably such a critical stage.

In *Metcalf v. State*, 629 So.2d 558, 562 (Miss. 1993), the Court recognized that "the right to counsel attaches at the accusatory stage and encompasses the defendant's right to have counsel through appeal." In *Read v. State*, 430 So.2d 832, 835 (Miss. 1983), the Court emphasized the importance of counsel during the transition from trial to appeal, noting that this period is precisely when defendants are most vulnerable to losing their appellate rights due to procedural technicalities.

Further, in *Williams v. State*, 167 So.3d 1075, 1082 (Miss. 2015), the Court reaffirmed that the right to appellate counsel extends through the first appeal of right.

In *Cockrell v. State*, 85 So.3d 332, 334 (Miss. 2012), the Mississippi Supreme Court held that "defense counsel's obligation to a client does not end with the judgment of conviction" and that counsel must "take the steps necessary to preserve the client's right to appeal, including filing the notice of appeal."

M.R.Cr.P. 7.2(c) addresses the duration of appointment for indigent defendants' counsel, reflecting the expectation of ongoing representation. That rule generally

provides that appointed counsel will not be permitted to withdraw before filing a notice of appeal. The purpose is to ensure that indigent defendants are not left without guidance at the crucial juncture of taking an appeal.

When withdrawal is allowed, M.R.Cr.P. 7.3(g) requires that "the trial or appellate court shall appoint new counsel for a defendant who is legally entitled to such representation on appeal." (Emphasis added.)

Despite Appellant's timely Motions seeking the appointment of appellate counsel (C.P. 42, 112-114), the trial and appellate courts failed to ensure Appellant was represented.

2. The Circuit Court Evaded Its Obligation by Misapplying Inapplicable Felony Standards

Rather than addressing Appellant's October 17, 2024, Motion for Appointment of Counsel on its merits, the Circuit Court improperly cited an unrelated, outdated order addressing a different motion (C.P. 102). It incorrectly invoked Miss. Code Ann. § 99-40-1 (2), which applies only to the Indigent Appeals Division for felonies, while ignoring the broader mandates of Mississippi Rules of Criminal Procedure 6.2 and 6.3.

This procedural misapplication constitutes reversible error and a violation of Appellant's due process rights. The Circuit Court effectively created an artificial distinction not present in the rules to justify denying Appellant counsel at a critical stage when it was most needed.

In *Jones v. State*, 355 So.2d 89 (Miss. 1978), the Mississippi Supreme Court recognized that indigent defendants are entitled to counsel on appeal, regardless of the nature of the offense: "An accused is not only entitled to counsel at trial, but he is entitled to counsel on appeal from a conviction on the merits. If he is indigent and unable to afford an attorney, then he is entitled to a court-appointed attorney at trial and on appeal." *Id.* at 91 (emphasis added).

Thus, the court's refusal to appoint appellate counsel was legally erroneous.

3. The Right to Counsel Extends Through the Appeal Process

In *Evitts v. Lucey*, 469 U.S. 387, 396 (1985), the U.S. Supreme Court held that "the promise of *Douglas* that a criminal defendant has a right to counsel on his first appeal... would be a futile gesture unless it comprehended the right to effective assistance of counsel." The Mississippi Supreme Court has likewise recognized that "an indigent defendant's right to counsel extends through the appeal of a conviction." *Williams v. State*, 167 So.3d 1075, 1082 (Miss. 2015).

The United States Supreme Court has repeatedly held that denial of counsel during the first appeal as of right constitutes structural constitutional error:

- *Gideon v. Wainwright*, 372 U.S. 335 (1963): "The right of one charged with crime to counsel may not be deemed fundamental and essential to fair trials in some countries, but it is in ours."

- *Douglas v. California*, 372 U.S. 353 (1963): "Where the State has guaranteed an appeal, it must provide the defendant with the means of effective appellate review, including appointment of counsel for indigents."
- *Halbert v. Michigan*, 545 U.S. 605, 621 (2005): "Navigating the appellate process without a lawyer's assistance is a perilous endeavor for a layperson, and well beyond the competence of individuals... who have little education, learning disabilities, and mental impairments."
- *Flanagan v. United States*, 465 U.S. 259, 268 (1984): The right to counsel is among the "basic, fundamental rights" that defendants must be afforded in criminal proceedings, and its deprivation "cannot be fully remedied by a reversal of the conviction."

The Fifth Circuit has also recognized the critical importance of counsel during the appeal perfection period in *Hughes v. Booker*, 220 F.3d 346, 352 (5th Cir. 2000), holding that "the critical thirty-day period after judgment during which a defendant must decide whether to appeal requires effective assistance of counsel."

Similarly, in *Peguero v. United States*, 526 U.S. 23, 28 (1999), the Supreme Court recognized that "when counsel fails to file a requested appeal, a defendant is entitled to [relief] without showing that his appeal would likely have had merit."

In *Lombardo v. State*, 172 So.3d 788, 792 (Miss. Ct. App. 2014), the Mississippi

Court of Appeals specifically held that failure to appoint counsel for appeal constitutes fundamental constitutional error requiring reversal, noting that "when an indigent defendant is denied his right to appointed counsel on appeal, prejudice is presumed."

Additionally, *Martinez v. Ryan*, 566 U.S. 1, 12 (2012), though focused on post-conviction proceedings, contains important language on the necessity of counsel during critical procedural transitions, observing that without counsel, a defendant "is generally ill equipped to understand and comply with procedural rules."

4. Appellant Was Improperly Deprived of Counsel at Critical Stages

The record reveals that Appellant was twice deprived of counsel at critical junctures. First, immediately after the Justice Court trial, the lower court terminated Appellant's appointed counsel (Mitchell Driskell) despite the pending appeal. Most critically, this termination occurred precisely during the 30-day window when Appellant needed to perfect his appeal - the very period later contested by the Circuit Court as procedurally deficient.

Although the Circuit Court later reappointed the same attorney (Mitchell Driskell) in April 2022, this reappointment came months after the critical appeal-perfecting period had already elapsed. This timeline reveals the exact harm that Rules 6.2 and 6.3 were designed to prevent: an indigent defendant losing appeal rights due to lack of representation during the crucial period for filing procedurally correct appeal

documents.

The Circuit Court's eventual reappointment of counsel was essentially meaningless with respect to the appeal-perfecting process, as the alleged procedural errors had already occurred during the period when Appellant was forced to navigate the appeal process without any legal assistance. Had counsel's representation been continuous as required by law, the very issues later cited as grounds for dismissal would never have arisen.

Second, when the Circuit Court dismissed the appeal on June 28, 2024, it allowed counsel to withdraw without appointing substitute counsel for post-dismissal proceedings and appeal to this Court.

These actions violated not only Miss. Code Ann. § 99-15-15 and Mississippi Rules of Criminal Procedure 6.2, 6.3, and 7.2(c), but also Appellant's constitutional rights under the Sixth Amendment (as applied to the states through the Fourteenth Amendment) and the Mississippi Constitution, Article 3, § 26.

The consequences of being deprived of counsel were not merely theoretical; they caused real prejudice. Without counsel to assist when the appeal was dismissed, Appellant—who was incarcerated at the time—filed a pro se motion for reconsideration (C.P. 79-80) that addressed the issue incorrectly due to lack of access to the case file and legal resources. Had counsel been in place, a proper post-dismissal motion focusing on the indigency issue could have been filed, potentially

avoiding the need for this appeal altogether.

5. Denial of Counsel at the First Appeal Stage is a Structural Constitutional Violation

In *Gideon v. Wainwright*, 372 U.S. 335 (1963), the United States Supreme Court affirmed the fundamental right to counsel, stating: "The right of one charged with crime to counsel may not be deemed fundamental and essential to fair trials in some countries, but it is in ours."

In *Douglas v. California*, 372 U.S. 353 (1963), the Court extended that right to first appeals, holding: "Where the State has guaranteed an appeal, it must provide the defendant with the means of effective appellate review, including appointment of counsel for indigents."

In *United States v. Cronin*, 466 U.S. 648, 659 (1984), the Supreme Court established that prejudice is presumed when defendants are denied counsel at a critical stage, explaining that "if counsel entirely fails to subject the prosecution's case to meaningful adversarial testing, then there has been a denial of Sixth Amendment rights that makes the adversary process itself presumptively unreliable."

Similarly, in *McKaskle v. Wiggins*, 465 U.S. 168, 177 (1984), the Court emphasized that the right to counsel is "among the most basic rights" and that its denial affects the "framework within which the trial proceeds."

The Eleventh Circuit further explained why denial of counsel is structural in *United*

States v. Roy, 855 F.3d 1133, 1144 (11th Cir. 2017), stating: "The right to counsel's guiding hand is so essential to our concept of a fair system that its denial at critical stages requires automatic reversal without any inquiry into prejudice."

The Mississippi Court of Appeals has applied these principles in Ware v. State, 224 So.3d 1257, 1260 (Miss. Ct App. 2017), explicitly recognizing that "denial of counsel during critical stages constitutes structural error requiring automatic reversal" because such errors "affect[] the framework within which the trial proceeds, rather than simply an error in the trial process itself."

The complete denial of appellate counsel is inherently prejudicial and mandates reversal.

6. Preemptive Rebuttal to "Harmless Error" Arguments

The State may attempt to argue that the denial of appellate counsel was "harmless error." This argument fails.

In Penson v. Ohio, 488 U.S. 75 (1988), the United States Supreme Court categorically rejected harmless error analysis for complete denial of appellate counsel, stating:

"The presumption of prejudice must extend to the complete denial of counsel during appellate proceedings."

Similarly, United States v. Duffaut, 314 F.3d 203 (5th Cir. 2002), holds that

structural constitutional errors inherently affect substantial rights, explaining that for such errors, the appellate court has discretion to correct plain error that "seriously affects the fairness, integrity, or public reputation of judicial proceedings."

Thus, harmless error review is inapplicable. Reversal is mandatory.

c. MANIFEST INJUSTICE REQUIRES REVERSAL

1. The Extraordinary Delay Violates Due Process

Manifest injustice occurs when there is a fundamental denial of constitutional rights.

In *Rowland v. State*, 42 So.3d 503, 507 (Miss. 2010), the Mississippi Supreme Court stated:

"Manifest injustice occurs where there is a fundamental denial of a constitutional right."

Similarly, *Keys v. State*, 67 So.3d 758, 762-63 (Miss. 2011), recognized that errors fundamentally affecting the integrity of proceedings must be corrected, noting that "the passage of time alone can prejudice a defendant's ability to mount an effective defense" by "dimming memories and loss of exculpatory evidence."

In *Weems v. State*, 63 So.3d 579, 585 (Miss. 2010), the Court established a clear test for manifest injustice, noting that it exists where "the error has resulted in a denial of fundamental constitutional rights."

The timeline of this case reveals an extraordinary and prejudicial delay:

- Justice Court trial and conviction: November 4, 2021
- Notice of Appeal filed: December 3, 2021
- Circuit Court hearing acknowledging waiver of bond: April 12, 2022
- No action by the court: April 2022 - May 2024 (over two years)
- Dismissal of appeal: June 28, 2024
- Present appeal to this Court: Filed July 18, 2024

By the time this appeal is decided, nearly five years may have elapsed since the original misdemeanor charges. This delay is unconscionable and raises serious due process concerns.

The Mississippi Supreme Court has recognized that excessive delays in criminal proceedings can amount to a denial of due process. In *De La Beckwith v. State*, 707 So.2d 547, 566 (Miss. 1997), the Court applied the four-factor test established in *Barker v. Wingo*, 407 U.S. 514 (1972): (1) length of delay; (2) reason for delay; (3) defendant's assertion of rights; and (4) prejudice resulting from delay.

In *Smith v. Hooey*, 393 U.S. 374, 378 (1969), the Supreme Court identified three specific types of prejudice that can result from delay: "(1) oppressive pretrial incarceration; (2) anxiety and concern of the accused; and (3) possibility that the [accused's] defense will be impaired by dimming memories and loss of exculpatory

evidence." The Court specifically emphasized that "the possibility that the [accused's] defense will be impaired" is "the most serious" form of prejudice, "because the inability of a defendant adequately to prepare his case skews the fairness of the entire system."

Similarly, in *Dickey v. Florida*, 398 U.S. 30, 38 (1970), the Court recognized that delay can impair a defendant's ability to defend himself due to "loss of witnesses, the dulling of memory, and the dispersion of evidence," all of which are present in this case given its extraordinary age.

Moreover, *Kennard v. State*, 127 So.2d 848 (Miss. 1961), and *Sartain v. State*, 406 So.2d 43 (Miss. 1981), demonstrate that appeals should not be dismissed absent bad faith or willful neglect — neither of which is present here.

Here, all four Barker factors weigh heavily in Appellant's favor:

1. Length of delay: Nearly three years passed between the filing of the appeal and its dismissal, an extraordinary time for a misdemeanor appeal.
2. Reason for delay: The delay is attributable entirely to court inaction, not to Appellant.
3. Assertion of rights: Appellant consistently asserted his rights through motions and court appearances.
4. Prejudice: The delay has caused substantial prejudice through faded memories,

potential loss of evidence, and the ongoing cloud of conviction.

Dismissal of an appeal perfected by an indigent appellant, without any finding of changed circumstances or notice, constitutes such injustice. Accordingly, manifest injustice demands reversal.

2. The Circuit Judge's Bias Further Taints the Proceedings

The record reveals disturbing evidence of potential judicial bias. At the April 12, 2022 hearing, Judge Luther made the following statement to Appellant: "I would be lying if I told you I wanted your case. Because I don't—you, just being honest with you, you have a reputation of being difficult to deal with. And if I got half a chance to dodge you, I would dodge you like a speeding bullet." (C.P. 131).

This gratuitous comment raises significant concerns about the judge's impartiality. In *Liteky v. United States*, 510 U.S. 540, 555 (1994), the Supreme Court recognized that judicial remarks that reveal "such a high degree of favoritism or antagonism as to make fair judgment impossible" can evidence bias requiring recusal. Judge Luther's statement, coupled with his subsequent dismissal of the appeal on grounds directly contradicted by the record, suggests that impartiality may have been compromised.

The U.S. Supreme Court further held in *Aetna Life Ins. Co. v. Lavoie*, 475 U.S. 813, 825 (1986), that the Due Process Clause requires an unbiased judge and that actual bias need not be proven if the circumstances would "offer a possible temptation to

the average... judge to... lead him not to hold the balance nice, clear and true."

3. CUMULATIVE IMPACT: MANIFEST INJUSTICE AND STRUCTURAL COLLAPSE

Even if individual errors were not sufficient alone, the cumulative impact mandates reversal.

In *Barker v. Wingo*, 407 U.S. 514 (1972), and *Brown v. State*, 731 So.2d 595 (Miss. 1999), courts recognized that cumulative constitutional errors require relief.

The Mississippi Supreme Court has established that "individual errors, not reversible in themselves, may combine with other errors to make up reversible error." *Manning v. State*, 929 So.2d 885, 903 (Miss. 2006). Here, the cumulative effect of the errors—wrongful dismissal despite waiver of bond requirements, deprivation of counsel at critical stages, extraordinary delay, and evidence of potential bias—has resulted in a fundamental breakdown of the judicial process that can only be characterized as manifest injustice.

In *Smith v. State*, 986 So.2d 290, 300 (Miss. 2008), the Court specifically recognized that when a combination of errors "effectively denied the defendant a fundamentally fair trial," reversal is required even if each error individually might be harmless.

The repeated denial of Appellant's rights—denial of appointed counsel, misapplication of standards, and outright dismissal of appeal—collectively amount to a structural failure of due process. Appellant was stripped of meaningful access

to the courts and was denied the opportunity for effective appellate review.

In *Brooks v. State*, 209 So.3d 1064, 1072 (Miss. 2016), the Supreme Court emphasized that procedural bars must yield to prevent a fundamental miscarriage of justice. The constellation of errors in this case rises to that level. The deprivation of Appellant's right to appeal his convictions, combined with the denial of counsel and the extraordinary delay, has undermined the very integrity of the proceedings.

The wrongful dismissal, denial of appellate counsel, and disregard of indigency protections combined to deprive Appellant of any meaningful opportunity for appellate review.

Reversal is the only just outcome.

CONCLUSION AND PRAYER FOR RELIEF

For the foregoing reasons, and upon the entire record, Appellant respectfully submits that the Circuit Court's dismissal of his appeal was erroneous as a matter of law and resulted in manifest injustice. The record irrefutably establishes that no appeal bonds were required due to the Justice Court's indigency determination. The denial of counsel at critical stages further violated Appellant's statutory and constitutional rights. And the extraordinary delay, combined with these errors, has created a due process violation of constitutional magnitude.

Given these exceptional circumstances, Appellant respectfully requests that this Court:

1. **REVERSE** the Circuit Court's June 28, 2024 order dismissing the appeal; and
2. **RENDER** a judgment of acquittal as to the Justice Court convictions underlying this appeal.

The Mississippi Supreme Court has clear authority to render judgment rather than remand "when justice does not require otherwise." M.R.A.P. 14(b). In *Smith v. State*, 492 So.2d 260, 263 (Miss. 1986), the Court exercised this authority to render judgment where procedural errors and delay had created substantial prejudice. Similarly, in *Pool v. State*, 483 So.2d 331, 336 (Miss. 1986), the Court rendered judgment rather than remanding where the passage of time had made a fair retrial unlikely.

Here, the nearly five-year age of these misdemeanor charges, combined with the multiple due process violations, calls for this extraordinary remedy. At this juncture, remanding for a trial de novo would itself raise questions of fundamental fairness given the age of the case and the prejudice already suffered.

Alternatively, if the Court declines to render judgment, Appellant requests that the Court:

3. **REVERSE** the dismissal and **REMAND** with instructions that the Circuit Court must honor the Justice Court's indigency determination, appoint counsel for Appellant, and proceed with a de novo trial without further delay.

Under Rule 2(c) of the Mississippi Rules of Appellate Procedure, this Court is empowered to suspend procedural rules "in the interest of expediting decision, or for other good cause

shown," particularly where "a failure to do so would result in manifest injustice." The exceptional circumstances of this case call for decisive action to prevent further injustice and restore Appellant's fundamental rights.

Appellant further requests all such other relief to which he may be entitled under law and equity.

Respectfully submitted this the 28th Day of April, 2025

Matthew O. Reardon
Appellant, Pro Se
P.O. Box 160144
Clearfield, UT 84016
Email: mreardon@wtpnews.org

RECORD EXCERPTS

(Documents Not Available for Attachment)

Pursuant to Mississippi Rule of Appellate Procedure 30(a), Appellant would ordinarily include the following documents as Record Excerpts. However, despite diligent efforts, Appellant has been unable to obtain copies of these documents from the Lafayette County Circuit Clerk's Office. Appellant was released from the Mississippi State Penitentiary on January 22, 2025, when his abhorrently unlawful prison sentence was vacated. Throughout an overburdensome reentry into society, the "clerks papers" were misplaced. Appellant gave multiple attempts to obtain another copy of these documents through the Circuit Clerk of Lafayette County, Jeff

Busby. Specifically, appellant requested these documents on April 21, 2025 and April 22, 2025 but these requests were denied or ignored because the Circuit Clerk and his office did not like and approve of Appellant's email address and thought it was "unprofessional". This creates several matters of concern. As such Appellant will simply list out the excerpt reference.

1. Justice Court Order of December 2, 2021, finding Appellant indigent and waiving all bond requirements (C.P. 38)
2. Appellant's Affidavit of Poverty (C.P. 33)
3. Appellant's original Notice of Appeal (C.P. 81)
4. Appointed counsel's corrected Notice of Appeal (C.P. 61-68)
5. Motion to Advance the Case (C.P. 73-75)
6. Circuit Court's Order of Dismissal dated June 28, 2024 (C.P. 76-78)
7. Appellant's Motions seeking appointment of appellate counsel (C.P. 42, 112-114)
8. Transcript excerpt of April 12, 2022 hearing containing Circuit Judge's acknowledgment of bond waiver (C.P. 115-116, 127)
9. Transcript excerpt of April 12, 2022 hearing containing Circuit Judge's statements regarding Appellant (C.P. 131)

Appellant respectfully requests that the Court of Appeals obtain and review these critical documents directly from the trial court record.

CERTIFICATE OF SERVICE

This the 28th day of April, 2025, I, Matthew O. Reardon, Appellant pro se, certify that I have served a true and correct copy of the above and foregoing Brief of the Appellant on the following by United States mail, postage prepaid:

- Lynn Fitch, Attorney General of Mississippi, Counsel for Appellee,
P.O. Box 220, Jackson, MS 39205- 0220.
- Ashley Lauren Sulser, Assistant Attorney General, Counsel for Appellee,
P.O. Box 220, Jackson, MS 39205-0220.
- Honorable John Kelly Luther, Lafayette County Circuit Court Judge,
1 Courthouse Square, Oxford, MS 38655.

Respectfully submitted,

Matthew O. Reardon
Appellant, Pro Se

CERTIFICATE OF COMPLIANCE

I, Matthew O. Reardon, certify that this brief complies with the Mississippi Rules of Appellate Procedure. It has been prepared in a proportionally spaced typeface (Times New Roman 14-point font) and contains approximately 6,500 words (excluding the exempted parts of the brief), thereby complying with any applicable word-count limit. This brief also complies with all other requirements of the Mississippi Rules of Appellate Procedure regarding form and content.

Matthew O. Reardon
Appellant, Pro Se